OARK LIMITED

UNANIMOUS SOLE-MEMBER CONSENT, SPECIAL RESOLUTION, DIRECTOR'S INTEREST DISCLOSURE, AND SOLE-DIRECTOR DECISION RECORD

Company number: PVT-AAADAM3

Proposed effective date of related-party licence: 1 August 2026

Decision date: ________________________ 2026

Sign this record on its true decision date and keep it with Oark Limited's statutory records. Attach the complete final form of the licence agreement reviewed and approved by this record. Do not backdate it.

1. Status and documentary basis

1. The company is **Oark Limited** (the **Company**), a Kenyan private company limited by shares, incorporated on 23 February 2017 under company number PVT-AAADAM3.
2. The official company search supplied for this exercise was issued on 3 May 2018 and showed Charles Njogu Kabui as the sole director and holder of all 100 ordinary shares then issued. A second supplied registry search was dated 23 February 2017. Neither search independently proves the register as at the Decision Date.
3. For purposes of this record, **Charles Njogu Kabui** (the **Member** and the **Director**) represents to the Company that, on the Decision Date:
    1. he remains the only member and beneficial owner of all issued shares in the Company;
    2. he remains the only director of the Company;
    3. the Company has no other director, alternate director, secretary required to approve this transaction, debenture holder with approval rights, or shareholder agreement governing this transaction;
    4. no amendment to the Company's articles prohibits this transaction or disapplies the sole-director and sole-member provisions relied on below; and
    5. no creditor, investor, grantor, regulator, court, administrator, liquidator, or other person has a consent right that applies to this transaction.
4. The Member acknowledges that a current official company search, the filed articles, registers of members and directors, register of charges, and latest annual return should be checked before execution. This record does not state that those current records were independently verified.
5. The agreement reviewed is the final execution version of the **Intellectual Property Ownership Confirmation and Non-Exclusive Commercial Licence Agreement** between Charles Njogu Kabui personally as licensor and the Company as licensee (the **Licence Agreement**), attached as Annex 1.

2. Legal capacity in which each part is made

1. **Part A** is a unanimous decision and special resolution of the sole Member in the Member's capacity as member, authorising future Company conduct and directing execution. It is not expressed as a director's vote on his own interested transaction.
2. **Part B** is the Director's written disclosure of the nature and extent of his interest to the Company and its sole Member.
3. **Part C** is a contemporaneous record of the Company benefit, alternatives, solvency information, and decision process.
4. **Part D** is the sole Director's written record that he will implement the Member's direction and execute the Licence Agreement for the Company. It does not purport to authorise the conflict by an interested director vote.
5. This structure is intended to operate consistently with sections 32, 142 to 151, 158, 207, 262, 317 to 319, and 37 of the Companies Act, 2015; the Fourth Schedule model articles for private companies limited by shares, including articles 3, 4, 7, 16 to 20; and any filed articles of the Company that apply.

PART A - UNANIMOUS SOLE-MEMBER CONSENT AND SPECIAL RESOLUTION

3. Materials considered by the Member

The Member confirms that, before making this decision, he received and considered:

1. the complete proposed Licence Agreement and all four Schedules;
2. the 2017 certificate of incorporation;
3. the company searches dated 23 February 2017 and 3 May 2018;
4. the memorandum of association and registration material supplied;
5. the identified Git provenance for Blober and ToKnow;
6. the known historic statements and payment arrangements involving Oark;
7. the known existing Blober customer terms, sales, refunds, and future-update promises;
8. the known GPLv3, MIT, LGPL, and other third-party licence qualifications;
9. the Company's current and contingent customer, tax, support, refund, data-protection, and operating obligations;
10. the conflict disclosure in Part B;
11. the Company-benefit and solvency record in Part C; and
12. the warnings and unresolved matters listed in clause 10 below.

4. Member findings

The Member, acting in his capacity as the sole Member, records the following findings for the Company:

1. The Company requires a documented right to continue commercially exploiting Blober and ToKnow after 31 July 2026.
2. The Company has not produced a written assignment under which it bought either Product from Charles Njogu Kabui.
3. A licence is commercially preferable to an acquisition because the Company:
   1. pays no up-front acquisition price;
   2. pays no minimum guarantee;
   3. receives a worldwide commercial right;
   4. retains 85% of Adjusted Gross Receipts before its operating costs;
   5. is released from contractual royalty claims for authorised use before the Effective Date;
   6. does not fund or employ the Licensor to undertake ongoing development unless separately agreed; and
   7. may terminate prospectively on 30 days' notice.
4. A 15% royalty on the defined Adjusted Gross Receipts is considered commercially supportable for the rights and benefits provided, subject to independent accounting, tax, and valuation advice.
5. Existing customer, consumer, creditor, tax, Personal Data, and third-party licence rights are expressly preserved rather than purportedly extinguished.
6. The arrangement does not state or assume that an Oark-owned asset can be removed from the Company estate by labelling it as personally owned.
7. The contingent confirmatory assignment in clause 3.8 of the Licence Agreement applies only if a competent authority later determines that Oark owns a right the Parties presently believe it does not own. It is supported by the composite consideration stated there and remains subject to any required approval, valuation, recordal, stamp duty, and insolvency law.
8. On the information in Part C, the Company expects the Licence Agreement to promote its success for the benefit of its Member and to support lawful revenue generation.

5. Unanimous consent and special resolution

The sole Member, holding 100% of the voting rights and acting by unanimous consent, makes the following decision and passes the following **special resolution**:

RESOLVED THAT:

1. the Company approve entering into the Licence Agreement in the form attached as Annex 1;
2. the related-party nature of the Licence Agreement and the Director's personal financial and ownership interest are fully disclosed and expressly consented to;
3. under the members' reserve power in article 4 of the model articles, to the extent that article applies, the Director is directed to execute and implement the Licence Agreement for the Company, subject to the execution formalities in section 37 of the Companies Act;
4. the Company approves the acknowledgement that the identified Owner Assets are owned by Charles Njogu Kabui as between the Parties, subject to superior third-party rights and determination by a competent authority;
5. the Company approves the worldwide non-exclusive Licence, the 15% royalty on Adjusted Gross Receipts, the historic royalty release, the restrictions, the 30-day termination right, and the existing-customer run-off provisions;
6. to the extent section 158 of the Companies Act applies to any contingent confirmatory assignment or other acquisition or disposal under the Licence Agreement, the arrangement is approved by the Member under section 158, conditional on any independent valuation, statutory threshold, recordal, stamp duty, creditor, insolvency, or other mandatory requirement then applicable;
7. the Company approves the Licensor's expressly reserved freedom to compete and license others, but only to the extent that such approval can lawfully be given and without authorising misuse of Company Materials or breach of a non-waivable director duty;
8. the Company shall keep separate Product accounts, deduct and remit withholding tax, require compliant tax invoices, and make the disclosures required in its financial statements and statutory records;
9. the Company shall correct public ownership statements prospectively, preserve historical records, and not falsify or alter past customer or tax documents;
10. the Company shall complete the execution and post-execution actions in clause 11; and
11. this decision is a prospective authorisation and direction. It is not intended to be a self-ratification of an undisclosed past breach of duty.

6. Sole-member record

The Member directs that this signed document be provided to the Company as the written details of the sole Member's decision and retained for at least ten years under sections 317 to 319 of the Companies Act, and longer while the Licence Agreement or a related claim remains live.

Signed by the sole Member

Signature: ______________________________

Name: **Charles Njogu Kabui**

Capacity: **Sole Member holding all 100 issued ordinary shares**

National ID No.: **29393333**

Decision date: ______________________________

Time: ______________________________

Place: ______________________________

In the presence of:

Witness signature: ______________________________

Witness full name: ______________________________

Witness ID/Passport No.: ______________________________

Witness physical address: ______________________________

Date: ______________________________

PART B - DIRECTOR'S DISCLOSURE OF INTEREST

7. Nature and extent of interest

I, **Charles Njogu Kabui**, disclose to the Company and its sole Member, before the Company enters the Licence Agreement, that:

1. I am the Company's sole Director and sole Member;
2. I am the proposed Licensor in my personal capacity;
3. I claim personal legal and beneficial ownership of the Owner Assets identified in the Licence Agreement, subject to its exclusions and qualifications;
4. I will be entitled personally to a royalty equal to 15% of Adjusted Gross Receipts;
5. I may receive withholding-tax certificates, VAT if legally applicable, indemnity protection, audit rights, termination rights, and other personal benefits under the Licence Agreement;
6. I retain the right to compete with Oark, operate through another entity, license another person, and sell or assign an Owner Asset subject to applicable law and existing rights;
7. I may benefit if the Company corrects prior ownership statements, acknowledges my title, transfers provider-level control, or executes a contingent confirmatory assignment;
8. my personal interests may conflict with the Company's interest in acquiring permanent, exclusive, transferable, cheaper, or creditor-accessible rights; and
9. I have therefore not treated an interested director vote as the sole source of authority for the transaction and have sought the unanimous Member direction in Part A.

This is intended as the fullest reasonably practicable disclosure of the nature and extent of my interest for section 151 of the Companies Act and the Company's applicable articles. Because there is no other director to receive the disclosure, I give it in writing to the Company and its sole Member and direct that it be retained with the sole-director decision record.

Signed by the Director as disclosure

Signature: ______________________________

Name: **Charles Njogu Kabui**

Capacity: **Sole Director**

Disclosure date: ______________________________

Time: ______________________________

PART C - COMPANY BENEFIT, ALTERNATIVES, AND SOLVENCY RECORD

8. Alternatives considered

The Member and Director record that the following alternatives were considered:

Alternative	Reason not selected at this time
Company acquisition of all IP	Requires a valuation and acquisition price, defeats the intended personal ownership structure, and may trigger section 158 and assignment-recordal requirements
Exclusive perpetual licence	Reduces the Licensor's restart and parallel-licensing freedom and would warrant materially different pricing
Royalty-free licence	Weakens the commercial evidence and gives the Company use without continuing consideration
Fixed monthly fee	Could burden the Company during low-revenue months and is less aligned with actual sales
15% of unadjusted cash receipts	Does not account for bona fide refunds, chargebacks, transaction taxes, or payment-processing fees

Alternative	Reason not selected at this time
15% of Adjusted Gross Receipts	Selected as revenue-aligned while preserving 85% for Oark before operating costs
Immediate at-will termination	Creates avoidable customer and Company continuity risk; 30 days without cause plus immediate termination for specified breaches was selected

9. Company benefit analysis

The Company records the following anticipated benefits:

1. lawful documented access to Products it did not pay to acquire;
2. continued worldwide commercial exploitation;
3. no acquisition price, minimum royalty, or development payroll;
4. retention of 85% of Adjusted Gross Receipts before Oark's operating costs;
5. a historic contractual royalty release;
6. a defined customer run-off that reduces abrupt consumer harm;
7. clearer treatment of Owner Assets, Company Materials, Personal Data, and Third-Party Materials;
8. improved due-diligence and creditor disclosure; and
9. termination rights if the structure no longer benefits the Company.

The Company also records the disadvantages: no exclusivity, no ownership, dependence on a terminable licence, a royalty cost, restrictions on transfer and source access, and the Licensor's freedom to compete. The Member accepts those disadvantages in light of the benefits and the Company's lack of an acquisition payment.

10. Solvency and liabilities as at the Decision Date

The Director shall complete this section from current evidence before signing. Do not sign a statement that is not true.

1. Cash at bank and immediately available funds: KES ____________________
2. Receivables reasonably collectible within 30 days: KES _______________
3. Debts currently due: KES ____
4. Debts falling due within 30 days: KES ________________________________
5. Customer refund and chargeback exposure reasonably estimated: KES ____
6. Tax due or accrued, including corporation tax, VAT, WHT, penalties: KES _
7. Other known or contingent liabilities: KES ___________________________
8. Registered or unregistered security interests known to the Director: ____
9. Pending or threatened litigation, demands, audits, or investigations: ____
10. Employees, unpaid contractors, investors, lenders, or grantors: ________

Based on the completed information and attached evidence, the Director states that, on the Decision Date:

- ☐ the Company can pay its debts as they fall due;
- ☐ the Company will remain able to pay its debts after entering and performing the Licence Agreement;
- ☐ the Company is not entering the arrangement to delay, hinder, prefer, or defraud a creditor;
- ☐ there is no pending Insolvency Event;
- ☐ there is no undisclosed claim that Oark owns either Product; and
- ☐ all contrary facts are described in an attachment signed and dated by the Director.

Evidence attached to this record:

- ☐ current bank statement;
- ☐ current aged payables and receivables;
- ☐ latest tax ledger or returns;
- ☐ sales, refund, and chargeback summary;

- ☐ latest annual return and current official company search;
- ☐ current registers of members, directors, and charges;
- ☐ filed articles of association; and
- ☐ other: ____.

11. Unresolved matters and assumptions

The Member and Director expressly acknowledge these unresolved matters:

1. no current 2026 official company search was supplied;
2. Oark's filed articles were not supplied, so the model articles are not confirmed as unmodified;
3. the latest annual return, Company registers, Company KRA ledger, bank statements, and financial statements were not independently reviewed for this drafting exercise;
4. the Microsoft employment documents supplied were password-encrypted and were not reviewed; the ToKnow first commit used a Microsoft email address;
5. domain and infrastructure provider records still use an Oark email address and have not been migrated to personal control;
6. ToKnow has publicly linked to GPLv3 and Blober release metadata has described released material as MIT-licensed;
7. Blober customer terms promise lifetime use and future updates;
8. customer transaction, user, receipt, and chat files have been committed to Blober Git history and require a separate data-protection response;
9. no independent IP valuation, tax opinion, insolvency opinion, or Kenyan advocate opinion has been obtained; and
10. this record cannot make the arrangement immune from a court, regulator, creditor, customer, or insolvency office-holder.

PART D - SOLE-DIRECTOR IMPLEMENTATION AND EXECUTION RECORD

12. Director's implementation decision

After receiving the unanimous Member direction in Part A and recording the disclosure and information above, I, Charles Njogu Kabui, acting as sole Director:

1. acknowledge the Member's direction to cause the Company to enter the Licence Agreement;
2. record that I am not purporting to cast a decisive interested director vote to authorise my own transaction;
3. record that my implementation remains subject to the Companies Act, the Company's actual filed articles, mandatory law, and the truth of Part C;
4. decide to sign the Licence Agreement for Oark solely to implement the authorised Company act;
5. shall sign separately in the Company capacity and in the physical presence of an independent adult witness who attests the Company signature under section 37(2)(b) of the Companies Act;
6. shall not use the same signature stroke as both personal and Company execution;
7. shall arrange KRA stamp-duty adjudication and stamping within the applicable period;
8. shall cause the final executed Agreement and this record to be entered in Oark's statutory records;
9. shall ensure the related-party terms and material interest are disclosed in the Company's accounting records and financial statements as required by the Companies (General) Regulations; and
10. shall complete the post-execution checklist in the legal review memorandum.

Signed as sole Director's written record

Signature: ______________________________________

Name: **Charles Njogu Kabui**

Capacity: **Sole Director of Oark Limited**

Date: ______________________________________

Time: ______________________________

In the presence of:

Witness signature: ______________________________

Witness full name: ______________________________

Witness ID/Passport No.: ______________________________

Witness physical address: ______________________________

Date: ______________________________

13. Company record receipt

I confirm that the complete signed record and Annex 1 were entered into the records of Oark Limited on the date below.

Signature for record entry: ______________________________

Name: **Charles Njogu Kabui**

Capacity: **Sole Director**

Date and time of entry: ______________________________

Record location or identifier: ______________________________

ANNEX 1

Attach the complete final execution version of:

Intellectual Property Ownership Confirmation and Non-Exclusive Commercial Licence Agreement

File name: ______________________________

SHA-256 before signature: ______________________________

Number of pages: ______________________________

Initialled by sole Member: ______________________________

Initialled by sole Director: ______________________________